



CHAPTER cxxxviii.

An Act to confirm a Provisional Order of the Local Government Board relating to Liverpool. A.D. 1913.

[15th August 1913.]

WHEREAS the Local Government Board have made the Provisional Order set forth in the First Schedule hereto under the provisions of the Local Government Act 1888 :

51 & 52 Vict.
c. 41.

And whereas it is requisite that the said Order should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as amended and set out in the First Schedule hereto (herein-after referred to as "the Order") shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force.

Order in
First
Schedule
confirmed.

2. On any adjustment made otherwise than by agreement for the purposes of the Order or of this Act under section thirty-two or section sixty-two of the Local Government Act 1888 or under either of those sections as modified or adapted by the Order—

Provisions
as to adjust-
ments made
otherwise
than by
agreement.

(a) Any adjustment of the local taxation licences the estate duty grant and the residue under section one of the Local Taxation (Customs and Excise) Act 1890 in pursuance of the Order shall be carried out in accordance with the rules contained in Part I. of the Second Schedule hereto :

(b) Provision shall be made for the payment to any council or other authority affected by the Order of such sum

[Ch. cxxxviii.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 14) Act, 1913.

A.D. 1913.

as seems equitable in accordance with the rules contained in Part II. of the Second Schedule hereto in respect of any increase of burden which will properly be thrown on the ratepayers of the area of that council or other authority in meeting the cost incurred by that council or other authority in the execution of any of their powers and duties as a consequence of any alteration of boundaries effected by the Order or other change in relation to which the adjustment takes place.

In this section and in Part II. of the said Second Schedule the expression "council or other authority affected by the Order" includes any council authority or persons entitled to make an adjustment under section sixty-two of the Local Government Act 1888 or that section as modified or adapted by the Order.

Provisions
applying to
Order.

3. The following provisions shall apply to the Liverpool (Extension) Order 1913 (in this section referred to as "the Liverpool Order") and expressions in this section have the same meaning as in the said Order:—

Nomination
of additional
aldermen by
the Urban
Councils.

(1)—(a) The Much Woolton Council may if they think fit by resolution nominate the one of the two persons to be first elected as additional aldermen of the city required to be the councillor for the Much Woolton ward or to be chosen from among the persons qualified to be councillors whose qualifying property is situate in that ward and the person so nominated shall be elected an alderman of the City Council;

(b) The Allerton Council the Childwall Council and the Little Woolton Council by a majority of the members of such councils present and voting at a meeting to be called for the purpose by the lord mayor of the city and held between the first and tenth days of November one thousand nine hundred and thirteen may if they think fit by resolution nominate the other of the two persons to be first elected as additional aldermen of the city and the person so nominated shall be elected an alderman of the City Council. The said meeting shall be presided over by one of the said members (to be chosen by the meeting) who in the event of an

equality in the voting on any resolution shall have a casting vote in addition to his vote as such member : A.D. 1913.

- (2)—(a) Ten days at least before the ordinary day of election of councillors for the city in each year until two additional councillors have for the first time been elected in pursuance of this subsection for each of the new wards constituted by the Liverpool Order the town clerk of Liverpool shall ascertain the number of citizens whose names appear on the ward roll for each of such new wards. When and so soon as the number of citizens on the ward roll for any such new ward is so ascertained to be—
- Special provision as regards increased representation of new wards.

(i) Not less than one thousand and not more than two thousand ; or

(ii) More than two thousand ;

the town clerk shall in each case cause public notice to be given throughout the ward to the effect that at the next ordinary day of election of councillors one additional councillor will be elected for that ward and thereafter the number of councillors for that ward and for the city shall be increased by one and the town clerk shall insert the necessary particulars in the notice of election to be prepared signed and published by him in pursuance of section fifty-four of the Municipal Corporations Act 1882 ;

(b) So soon as a third councillor has been elected in any such ward the term of office and the retirement of each of the councillors representing that ward shall notwithstanding anything in the Liverpool Order be determined by the City Council in the manner provided by the Municipal Corporations Act 1882 ;

(c) If any difficulty arises in giving effect to this subsection or in the election of a councillor in pursuance of this subsection the Local Government Board may by order do or authorise anything which appears to them to be necessary or expedient for giving effect to this subsection or for the proper holding of the election and every such order shall have effect as if enacted in this Act :

[Ch. cxxxviii.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 14) Act, 1913.

A.D. 1913.

Special
provision
as to division
of Allerton
Childwall
and Little
Woolton
ward and
increased
representa-
tion of same.

(3)—(a) It shall be the duty of the council within six months of the election of the third councillor as aforesaid for the Allerton Childwall and Little Woolton ward to petition the King to divide the said ward into three wards (herein-after in this section referred to as “the new wards”) and to provide for an increased number of aldermen and councillors of the council pursuant to the provisions herein-after contained;

(b) If the council shall fail in the performance of their duty as aforesaid it shall be lawful for the majority of the councillors representing the Allerton Childwall and Little Woolton ward to present a petition to His Majesty in like manner as the same might have been presented by the council and all subsequent proceedings may thereupon be taken upon such petition as if it had been a petition presented by the council;

(c) In connexion with any scheme prepared for determining the boundaries of the new wards and apportioning the councillors among them in pursuance of the said petition under the Municipal Corporations Acts 1882 to 1910 the following provisions shall apply (viz.):—

(i) The boundaries to be so determined shall if and so far as the same shall be practicable be determined by reference to the existing boundaries of—

(a) The Allerton Urban District;

(b) The Little Woolton Urban District;

(c) The Childwall Urban District together with the adjoining portion of the existing Wavertree ward referred to in Article VIII. (2) of the Order;

(ii) The alderman referred to in subsection (1) (b) of this section shall be assigned to that new ward which shall contain the largest number of citizens at the date of the said scheme and such alderman shall hold office for the same time that he would have held it had the Allerton Childwall and Little Woolton ward remained undivided;

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxviii.]
Provisional Order Confirmation (No. 14) Act, 1913.

(d) Subsection (2) of this section shall apply mutatis A.D. 1913.
mutandis to each of the new wards;

(e) When three councillors shall for the first time have been elected for the new wards (other than the new ward to which the alderman is assigned pursuant to the provision in that behalf herein-before contained) the council shall proceed to elect an alderman to be assigned to the one of the last aforesaid new wards which shall then contain the largest number of citizens and when six councillors shall for the first time have been elected for such last aforesaid new wards the council shall proceed to elect an alderman to be assigned to the other of such aforesaid new wards and the number of aldermen of the city in each such case shall be increased by one alderman.

4. A petty sessional court shall from the commencement of the Order be held in the added area of the Much Woolton District for the transaction of such magisterial business (or any part thereof) as may arise within the added areas. Provided that nothing in this section shall in any way limit or restrict to the added areas the jurisdiction of the justices of the city by whom such court is held.

Petty ses-
sional court
in added
areas.

5. If the Corporation shall promote legislation or otherwise attempt to alter or vary any of the provisions of the Order or of this Act so far as the same apply to the added areas or any one or more of them any owner or ratepayer for the time being in any added area which will be affected thereby shall be entitled to petition Parliament against and otherwise oppose any such attempt and the Corporation shall not be entitled to object to the locus standi of any such person or persons and the costs of any such petition and opposition shall be borne and paid by the Corporation.

Rights of
owners or
ratepayers to
prevent
departure
from Order.

6. This Act may be cited as the Local Government Board's Short title.
Provisional Order Confirmation (No. 14) Act 1913.

A.D. 1913.

SCHEDULES.

FIRST SCHEDULE.

CITY OF LIVERPOOL.

*Liverpool
Order.*

*Provisional Order made in pursuance of the Local Government
Act 1888 for extending a County Borough.*

To the Lord Mayor Aldermen and Citizens of the City of
Liverpool ; —

To the Justices of the Peace for the said City ; —

To the Court of Quarter Sessions for the said City ; —

To the Justices of the Peace for the County Palatine of Lancaster
in Quarter Sessions assembled ; —

To the County Council of the County Palatine of Lancaster ; —

To the Urban District Council of Allerton ; —

To the Urban District Council of Childwall ; —

To the Urban District Council of Little Woolton ; —

To the Urban District Council of Much Woolton ; —

To the Guardians of the Poor of the Prescott Union ; —

To the Guardians of the Poor of the West Derby Union ; —

To the Overseers of the Poor of the Townships of Allerton
Childwall Little Woolton and Much Woolton ; —

And to all others whom it may concern.

51 & 52 Vict.
c. 41.

WHEREAS by Section 54 of the Local Government Act 1888 the
Local Government Board are empowered to make a Provisional Order
for altering the boundary of any Borough ;

And whereas the City of Liverpool is a County Borough within
the meaning of the Local Government Act 1888 and is for the pur-
poses of that Act situate in the County Palatine of Lancaster and the
inhabitants are a body corporate by the name of the Lord Mayor
Aldermen and Citizens of the City of Liverpool and act by the Council
of the said City which now consists of the Lord Mayor (who is also a

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxviii.]
Provisional Order Confirmation (No. 14) Act, 1913.

Councillor) thirty-four Aldermen and one hundred and two other Councillors and the said City is for the purposes of the election of Councillors divided into thirty-five wards one of which is termed the Wavertree Ward;

A.D. 1913.
Liverpool
Order.

And whereas the said City is an Urban Sanitary District of which the Lord Mayor Aldermen and Citizens acting by the Council are the Urban Sanitary Authority;

And whereas the said City has a separate court of quarter sessions commission, of the peace police force recorder and coroner and an ancient court of record known as the Court of Passage;

And whereas in pursuance of the Education Act 1902 the Council of the said City are the local education authority;

2 Edw. 7.
c. 42.

And whereas the unrepealed provisions of the Local Acts specified in Parts I. II. and III. of the schedule to this Order and of the Confirmation Acts specified in Parts IV. V. and VI. of the said schedule so far as the last-mentioned Acts relate to the Orders specified in that schedule are in force in the said City;

And whereas the provisions of—

(A) The Infectious Disease (Prevention) Act 1890;

53 & 54 Vict.
c. 34.

(B) Parts II. and III. of the Public Health Acts Amendment Act 1890;

53 & 54 Vict.
c. 59.

(C) The Museums and Gymnasiums Act 1891;

54 & 55 Vict.
c. 22.

(D) The Private Street Works Act 1892;

55 & 56 Vict.
c. 57.

(E) The Baths and Washhouses Acts 1846 to 1899;

9 & 10 Vict. c. 74.
10 & 11 Vict. c. 61.
41 & 42 Vict. c. 14.
45 & 46 Vict. c. 30.
59 & 60 Vict. c. 59.
62 & 63 Vict. c. 29.
55 & 56 Vict. c. 53.
56 Vict. c. 11.
1 Edw. 7. c. 19.
7 Edw. 7. c. 40.

(F) The Public Libraries Acts 1892 to 1901; and

(G) The Notification of Births Act 1907;

are in force in the said City;

And whereas the Urban Districts of Allerton Childwall and Little Woolton all in the County Palatine of Lancaster immediately adjoin the said City and the Urban District of Much Woolton in the said County immediately adjoins the Urban Districts of Allerton and Little Woolton;

And whereas the Urban District of Allerton is co-extensive with the Township of Allerton and is subject to the jurisdiction of the Urban District Council of Allerton;

And whereas the provisions of Parts II. III. and IV. of the Public Health Acts Amendment Act 1890 are in force in the Urban District of Allerton;

And whereas the Urban District of Childwall is co-extensive with the Township of Childwall and is subject to the jurisdiction of the Urban District Council of Childwall;

[Ch. cxxxviii.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 14) Act, 1913.

A.D. 1913.

*Liverpool
Order.*

And whereas the Urban District of Little Woolton is co-extensive with the Township of Little Woolton and is subject to the jurisdiction of the Urban District Council of Little Woolton ;

And whereas the provisions of the Infectious Disease (Prevention) Act 1890 and the Public Health Acts Amendment Act 1890 are in force in the Urban District of Little Woolton ;

And whereas the Urban District of Much Woolton is co-extensive with the Township of Much Woolton and is subject to the jurisdiction of the Urban District Council of Much Woolton ;

And whereas the provisions of—

- (A) The Infectious Disease (Prevention) Act 1890 ;
- (B) The Public Health Acts Amendment Act 1890 ;
- (c) The Baths and Washhouses Acts 1846 to 1899 ; and
- (D) The Public Libraries Acts 1892 to 1901 ;

are in force in the Urban District of Much Woolton ;

And whereas in pursuance of the Education Act 1902 the said Townships of Allerton Childwall Little Woolton and Much Woolton form part of the area of the County Council of the County Palatine of Lancaster as the local education authority ;

And whereas the said Townships of Allerton Childwall Little Woolton and Much Woolton are included in the Prescott Electoral Division of the County Palatine of Lancaster :

51 & 52 Vict.
c. 41. Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 54 and 59 of the Local Government Act 1888 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect :—

Definitions.

Art. I. In this Order—

- (1) The expression “the commencement of this Order” means the Ninth day of November One thousand nine hundred and thirteen ;
- (2) The expression “the existing City” means the City of Liverpool as it existed immediately prior to the commencement of this Order ;
- (3) The expression “the City” means the existing City as extended by this Order ;
- (4) The expression “the Corporation” means as the context requires the Lord Mayor Aldermen and Citizens of the existing City or of the City acting by the Council ;
- (5) The expressions “the County” and “the County Council” mean respectively the County Palatine of Lancaster and the County Council of that County ;

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxviii.]
Provisional Order Confirmation (No. 14) Act, 1913.

- (6) The expression "the maps" means the two maps each marked "Map of the City of Liverpool as extended 1913" and sealed with the official seal of the Local Government Board ;
- (7) The expressions "the Allerton District" and "the Allerton Council" mean respectively the Urban District of Allerton the area whereof is coloured brown on the maps and the Urban District Council of that District the expressions "the Childwall District" and "the Childwall Council" mean respectively the Urban District of Childwall the area whereof is coloured green on the maps and the Urban District Council of that District the expressions "the Little Woolton District" and "the Little Woolton Council" mean respectively the Urban District of Little Woolton the area whereof is coloured purple on the maps and the Urban District Council of that District and the expressions "the Much Woolton District" and "the Much Woolton Council" mean respectively the Urban District of Much Woolton the area whereof is coloured yellow on the maps and the Urban District Council of that District and the expression "the Urban Councils" means the Allerton Council the Childwall Council the Little Woolton Council and the Much Woolton Council ;
- (8) The expression "the added areas" means the Allerton District the Childwall District the Little Woolton District and the Much Woolton District ;
- (9) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894 ;
- (10) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same ;
- (11) The expression "the Local Acts" means the Acts specified in Parts I. II. and III. of the Schedule to this Order ; and
- (12) The expressions "the Confirmation Acts" and "the Provisional Orders" mean respectively the Confirmation Acts and the Provisional Orders specified in Parts IV. V. and VI. of the Schedule to this Order and the expressions "the Confirmation Act of 1895" "the Confirmation Act of 1902" "the Confirmation Act of 1905" and "the Confirmation Act of 1906" mean respectively the Local

A.D. 1913.
Liverpool
Order.

[Ch. cxxxviii.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 14) Act, 1913.

A.D. 1913.

*Liverpool
Order.*

Government Board's Provisional Order Confirmation (No. 10) Act 1895 Session 2 the Local Government Board's Provisional Orders Confirmation (No. 7) Act 1902 the Local Government Board's Provisional Orders Confirmation (No. 12) Act 1905 and the Local Government Board's Provisional Orders Confirmation (No. 8) Act 1906.

Commence-
ment of
Order.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred and thirteen:

Date of
operation
of Order for
parish bur-
gess lists &c.
51 Vict. c. 10.

Provided that for the purposes of the parish burgess lists and burgess roll and other lists to be made for the City under the Municipal Corporations Acts of the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year one thousand nine hundred and thirteen and of the revision of the basis or standard of the county rate of the County this Order shall operate from the date of the Act of Parliament confirming this Order:

Date of
operation for
purposes of
certain grants
and Local
Taxation
Licences.
53 & 54 Vict.
c. 60.
7 Edw. 7. c. 13.
8 Edw. 7. c. 16.
10 Edw. 7. c. 2.
1 Geo. 5. c. 8.

Provided also that for the purposes of Sections 20 22 23 24 and 26 of the Act of 1888 and for the purposes of the Local Taxation (Customs and Excise) Act 1890 as amended by Section 17 of the Finance Act 1907 Section 6 of the Finance Act 1908 Section 88 of the Finance (1909-10) Act 1910 the Revenue Act 1911 and any subsequent Act and as affected by any Order in Council made under Section 6 of the Finance Act 1908 the City shall be deemed not to have been altered and the added areas shall be deemed to continue part of the County until after the Thirty-first day of March One thousand nine hundred and fourteen.

Extension of
City.

Art. III.—(1) The boundary of the existing City the area whereof is coloured pink and blue on the maps shall be altered so as to include in addition to that area the Allerton District the Childwall District the Little Woolton District and the Much Woolton District.

(2) The boundary of the City shall be that shown by the red line on the maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and (subject to the provisions of this Order) for all other purposes be the City and shall be the County Borough for the purposes of the Act of 1888.

Deposit of
maps.

Art. IV.—(1) One of the maps shall be deposited in the office of the Local Government Board and the other shall be deposited

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxviii.]
Provisional Order Confirmation (No. 14) Act, 1913.

by the town clerk of the existing City at his office within fourteen days after the date of this Order Copies of the map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the clerk of the County Council to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to the Postmaster-General to the Board of Trade and to the Board of Agriculture and Fisheries.

A.D. 1913.

Liverpool
Order.

(2) Copies of or extracts from the map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of the map so far as it relates to the boundary of the City and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the City and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation All fees so received shall be carried to the credit of the city fund.

Copies of
map to be
evidence.

Art. V. The powers and duties of the quarter sessions recorder clerk of the peace and coroner of the existing City of the Court of Passage and of the judge registrar and other officers thereof and of the justices of the peace appointed for the existing City and of the clerk to those justices and of the police constables and other peace officers of the existing City shall extend to and apply throughout the City:

Powers and
duties of
justices &c.
extended.

Provided that every person committing an offence in any part of the added areas prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made:

Provided also that every proceeding which prior to the commencement of this Order has been begun by or before any justice or justices or coroner in relation to any matter arising in or concerning any part of the added areas may be carried on continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.

Art. VI.—(1) For the purposes of the parish burgess lists and burgess roll and the other lists to be made under the Municipal Corporations Acts and of all matters connected with incidental to or consequent upon those purposes the added areas shall be deemed to have always been part of the City.

Parish bur-
gess lists &c.

(2) In making out revising or otherwise dealing with the said lists and roll or the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or

[Ch. cxxxviii.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 14) Act, 1913.

A.D. 1913. any Act amending that Act or the lists and registers of parochial electors effect shall be given so far as the circumstances require or allow to the provisions of this Order.
Liverpool Order.

(3) Where any difficulty arising in the year One thousand nine hundred and thirteen in giving effect to the provisions of this Order can be obviated or removed by any alteration in or re-arrangement of or any other action affecting the said lists roll and registers that alteration re-arrangement or action so far as the same may be necessary for giving effect to the said provisions shall be made or taken by the town clerk of the existing City or the clerk of the County Council as the case may require and the Overseers of the Poor shall render such assistance as may be requisite for the purpose of the said alteration re-arrangement or action by the town clerk or clerk of the County Council as the case may be and that alteration re-arrangement or action shall be deemed to be authorised by the provisions in force with respect to the said lists roll and registers.

(4) Where in the opinion of the Local Government Board the circumstances so require the Local Government Board may make such order as appears to them to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the said lists roll and registers.

Number of
Councillors
and Alder-
men.

Art. VII. Subject to the provisions of the Confirmation Act of 1905 the number of Councillors of the City shall be increased from one hundred and three to one hundred and five and the number of Aldermen of the City shall be increased from thirty-four to thirty-six.

Division into
wards.

Art. VIII. Subject to the provisions of the Confirmation Act of 1905 and of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:—

- (1) For the purposes of the election of Councillors the City shall be divided into thirty-seven wards:
- (2) So much of the existing Wavertree Ward as is coloured blue on the maps together with the Allerton District the Childwall District and the Little Woolton District shall be formed into a new ward to be named the Allerton Childwall and Little Woolton Ward and the Much Woolton District shall be formed into a new ward to be named the Much Woolton Ward:
- (3) The Councillors representing the existing Wavertree Ward who will not go out of office on the First day of November One thousand nine hundred and thirteen shall be deemed from and after the commencement of this Order to represent that ward as altered by this Order:

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxviii.]
Provisional Order Confirmation (No. 14) Act, 1913.

(4) The other existing wards and the number of Councillors respectively apportioned thereto shall remain unaltered: A.D. 1913.

(5) One Councillor shall be assigned to each of the two new wards constituted by sub-division (2) of this Article.

*Liverpool
Order.*

Art. IX.—(1) The first election of a Councillor for each of the new Wards constituted by this Order shall be held on the First day of November One thousand nine hundred and thirteen and the Lord Mayor of the existing City shall be the returning officer at the election for those wards. Provided that the Lord Mayor of the existing City may appoint some other person to act as returning officer at the election for either of the wards.

First election
of Council-
lors for new
wards and of
additional
Aldermen.

(2) The first election of the two additional Aldermen shall take place on the Tenth day of November One thousand nine hundred and thirteen and of the two additional Aldermen so elected one shall be the Councillor elected for the Allerton Childwall and Little Woolton Ward or shall be chosen from among the persons qualified to be Councillors whose qualifying property is situate in that ward and the other shall be the Councillor elected for the Much Woolton Ward or shall be chosen from among the persons qualified to be Councillors whose qualifying property is situate in that ward.

Art. X.—(1) The Councillors elected in the year One thousand nine hundred and thirteen for the new wards constituted by this Order shall retire on the first day of November One thousand nine hundred and sixteen.

Retirement of
Councillors
for the new
wards and of
additional
Aldermen
elected in
1913.

(2) The two additional Aldermen elected for the City in the year One thousand nine hundred and thirteen shall retire as follows:—

(a) The alderman elected by the smaller number of votes on the Ninth day of November One thousand nine hundred and sixteen;

(b) The other alderman on the Ninth day of November One thousand nine hundred and nineteen:

Provided that if for any reason it is doubtful which of the aldermen ought to retire on the dates specified above the Council of the City shall on the Tenth day of November One thousand nine hundred and thirteen or at the next following quarterly meeting and not later by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the aldermen shall go out of office on the dates above specified respectively.

Art. XI.—(1) Subject to the provisions of this Order—

(i) The unrepealed provisions of the Local Acts and of the Confirmation Acts so far as the last-mentioned Acts respectively relate to the Provisional Orders and of any

Local Acts
and Orders.

[Ch. cxxxviii.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 14) Act, 1913.

A.D. 1913.

Liverpool
Order.

other Local Act (including any Local Act passed or to be passed during the present Session of Parliament) or of any other Provisional Order duly confirmed by Parliament and affecting the existing City or the Corporation as the same respectively are in force within the existing City at the commencement of this Order shall extend and apply to the City and any reference therein to the existing City and the Corporation shall be deemed to refer to the City and the Corporation thereof:

- (ii) The unrepealed provisions of the Confirmation Act of 1895 and of the City of Liverpool Order 1895 as thereby confirmed the unrepealed provisions of the Confirmation Act of 1902 and of the Liverpool (Extension) Order 1902 as thereby confirmed the unrepealed provisions of the Confirmation Act of 1905 and of the Liverpool (Extension) Order 1905 as thereby confirmed and the unrepealed provisions of the Confirmation Act of 1906 and of the Liverpool Order 1906 as thereby confirmed shall so far and in such manner as the said provisions are now in force continue to apply and have effect as if this Order had not been made.

(2) Sections 162 to 168 of the Liverpool Improvement Act 1842 and Sections 61 to 70 and 223 225 and 226 of the Liverpool Sanitary Act 1846 shall not be in force within or apply to any part of the added areas.

(3) The Electric Lighting Orders Confirmation (No. 7) Act 1896 so far as that Act relates to the unrevoked provisions of the Allerton Woolton Childwall and Garston Order 1896 the Electric Lighting Orders Confirmation (No. 3) Act 1900 so far as that Act relates to the Allerton Much Woolton Little Woolton and Childwall Order 1900 and Section 11 of the Liverpool Tramways and Electric Supply (Garston Transfer) Act 1902 shall be repealed.

Byelaws &c.

Art. XII. Subject to the provisions of this Order—

- (1) All byelaws and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing City shall thenceforth apply to the City until or except in so far as any such byelaws or regulations or list of tolls or table of fees and payments or scale of charges may be altered or repealed:
- (2) All byelaws and regulations made by the County Council or any of the Urban Councils or their predecessors and in force immediately before the commencement of this Order in any part of the added areas shall on that date cease to be in force except as regards any work which has

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxviii.]
Provisional Order Confirmation (No. 14) Act, 1913.

been begun before that date or as regards any work which has not been so begun but for which plans have been approved before that date by the Council of the Urban District in which the part is situate or have been sent to the surveyor or clerk to that Council one month at least before that date and shall not have been disapproved by that Council. As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply for a period of two years from the said date or until the completion of the work whichever shall first happen in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the City were referred to therein instead of the Council of the Urban District in which the part is situate and that District. Provided that any proceedings which if this Order had not been made might have been taken by the County Council or any of the Urban Councils for any offence committed before the commencement of this Order against any byelaws and regulations made by that Council or their predecessors and in force immediately before the commencement of this Order in any part of the added areas may be taken by the Corporation as if those byelaws and regulations had remained in force and the Corporation had been substituted therein for that Council.

A.D. 1913.

Liverpool
Order.

Art. XIII.—(1) The town clerk and all other officers and servants of the Corporation of the existing City who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the City and shall hold their offices by the same tenure as at that date.

Town clerk
 and other
 officers con-
 tinued.

(2) The auditors of the existing City who are in office at the commencement of this Order shall continue in office and shall for the purposes of the Municipal Corporations Acts be the city auditors until the next ordinary day of election of city auditors.

City auditors.

Art. XIV.—(1) The provisions of subsection (13) of Section 118 and of Section 119 of the Act of 1888 shall apply to all persons who at the commencement of this Order hold office as officers or servants of any of the Urban Councils with such modifications as are necessary to make those provisions applicable to the said officers and servants and to the Corporation.

Compensa-
 tion to
 existing
 officers.

(2) Every clerk to justices and county coroner and every officer or servant of or paid by the County Council or of or paid by the Standing Joint Committee of the County and every other officer or

[Ch. cxxxviii.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 14) Act, 1913.

A.D. 1913.

*Liverpool
Order.*

servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss and in determining the said compensation and the compensation payable to any person who becomes entitled to compensation in pursuance of subdivision (1) of this Article regard shall be had to the conditions and other circumstances required by subsection (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid in the case of any such officer or servant whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 out of the general rate of the City and in every other case out of the city fund of the City or out of moneys borrowed under Article XXVI. of this Order and the provisions of subsections (2) to (7) of Section 120 of the Act of 1888 shall apply with the necessary modifications. Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

(3) For the purposes of subdivision (2) of this Article any clerk to justices county coroner officer or servant to whom that subdivision applies and whose services are dispensed with or whose salary is reduced by the Secretary of State or the County Council or the Standing Joint Committee of the County or any other authority including the Corporation within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence thereof and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

(4) No person shall be entitled to claim or receive both compensation for any direct pecuniary loss by abolition of office or diminution or loss of fees or salary and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

*Actions &c.
not to abate.*

Art. XV.—(1) Any action or proceeding or any cause of action or proceeding which at the commencement of this Order is pending or existing by or against any of the Urban Councils shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the City.

*Saving for
contracts &c.*

(2) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxviii.]
Provisional Order Confirmation (No. 14) Act, 1913.

this Order) entered into or made by any of the Urban Councils or their predecessors shall be of as full force and effect against or in favour of the Corporation of the City and may be continued and enforced as fully and effectually as if instead of the Urban Council or their predecessors the Corporation had done or suffered the same or been a party thereto.

A.D. 1913.

*Liverpool
Order.*

Art. XVI. Subject to the provisions of this Order all property vested in the Corporation at the commencement of this Order for the benefit of the existing City shall by virtue of this Order be held by the Corporation for the benefit of the City and the Corporation shall hold enjoy and exercise for the benefit of the City all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing City and all liabilities which at the date aforesaid attached to the Corporation in respect of the existing City shall from and after that date attach to them in respect of the City.

Corporation
property &c.

Art. XVII. Each of the Urban Councils shall liquidate as far as practicable before the commencement of this Order all current debts and liabilities incurred by them.

Liquidation of
current debts
and liabilities
by Urban
Councils.

Art. XVIII. Subject to the provisions of this Order—

- (1) All property and liabilities which immediately before the commencement of this Order are vested in or attach to any of the Urban Councils shall by virtue of this Order be transferred to and vest in and attach to the Corporation as Urban Sanitary Authority :
- (2) The Urban Councils shall at the commencement of this Order be abolished and cease to exist :
- (3) All arrears of rates made by any of the Urban Councils and all other payments which at the commencement of this Order are due or owing to any of the Urban Councils may be collected and recovered by the Corporation.

Property &c.
of Urban
Councils.

Abolition of
Urban Coun-
cils.

Arrears of
rates &c.

Art. XIX.—(1) The liability for repayment of any sums borrowed by any of the Urban Councils or of so much of any of those sums as will be owing at the commencement of this Order and for the payment of the interest thereon shall by virtue of this Order be transferred to and attach to the Corporation and so much as will at the commencement of this Order be outstanding in respect of any sums borrowed as aforesaid and so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the general rate of the existing City shall by virtue of this Order be charged upon the general rate of the City and so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the city fund of the existing City

Mortgage
debts of
Urban Coun-
cils and Cor-
poration.

[Ch. cxxxviii.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 14) Act, 1913.

A.D. 1913. shall by virtue of this Order be charged upon the city fund of the
Liverpool City and all those sums shall together with the interest to accrue due
Order. thereon be repaid by the Corporation within the respective periods for
 which the loans in respect of which the said sums are owing were
 originally sanctioned or within which the same are otherwise required
 to be repaid or are made repayable.

(2) Nothing in this Order shall prejudice or affect any mortgage
 or other security which has been granted in respect of any sum
 borrowed as aforesaid by any of the Urban Councils or the powers of
 any person entitled under any such mortgage or other security to enforce
 the same as if this Order had not been made and where for any such
 purpose it is necessary to continue the exercise of a power which
 would have existed but for this Order the power may continue to be
 exercised as if this Order had not been made and the general rate of
 the City shall for any such purpose be levied and have effect in
 substitution for the rate which would have been leviable if this Order
 had not been made.

Adoptive
 Acts.

Art. XX.—(1) The provisions of the Baths and Washhouses
 Acts 1846 to 1899 the Infectious Disease (Prevention) Act 1890
 Parts II. and III. of the Public Health Acts Amendment Act 1890
 the Museums and Gymnasiums Act 1891 the Private Street Works
 Act 1892 the Public Libraries Acts 1892 to 1901 and the Notification
 of Births Act 1907 shall be in force in and apply to the City as
 if the same had been adopted therein.

(2) The provisions of Parts IV. and V. of the Public Health Acts
 Amendment Act 1890 shall cease to be in force in and apply to
 any part of the added areas.

Powers under
 Public
 Health Acts
 Amendment
 Act 1907.
 7 Edw. 7.
 c. 53.

(3) Subject to the provisions of any Order which the Local
 Government Board or a Secretary of State may hereafter make the
 provisions of any Order made by the Local Government Board or by
 the Secretary of State and declaring to be in force in the existing
 City any Parts or Sections of the Public Health Acts Amendment
 Act 1907 shall have and shall be deemed always to have had effect
 as if any reference in those provisions to the existing City extended
 and applied to the City and as if the said Parts or Sections were
 accordingly declared to be in force in the City and the provisions of
 any Order made by the Local Government Board or the Secretary of
 State and declaring to be in force in the Little Woolton District or the
 Much Woolton District any Parts or Sections of the said Act shall
 cease to be in force in and apply to any part of the added areas :

(4) Nothing in subdivisions (2) and (3) of this Article shall—

(A) affect the operation prior to the commencement of this Order
 of any of the provisions referred to in those subdivisions
 or anything duly done or suffered thereunder; or

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxviii.]
Provisional Order Confirmation (No. 14) Act, 1913.

- (b) affect any right privilege or obligation or liability acquired accrued or incurred under any such provisions; or
 (c) affect any penalty forfeiture or punishment incurred in respect of any offence committed against any such provisions; or
 (d) affect any investigation legal proceeding or remedy in respect of any such right privilege obligation liability penalty forfeiture or punishment as aforesaid.

A.D. 1913.
*Liverpool
 Order.*

Art. XXI. Subject to the provisions of any Order which the Local Government Board may hereafter make—

Powers under
 Section 33 of
 Act of 1894.

- (1) The provisions of any Order heretofore made by the Local Government Board and conferring upon the Council of the existing City any of the matters mentioned in Section 33 of the Act of 1894 and in that Order shall be deemed to have effect as if any reference therein to a parish wholly comprised within the existing City extended and applied to a parish wholly comprised within the City:
- (2) Any powers duties or liabilities in respect of the appointment and the revocation of the appointment of assistant overseers vested in or attaching to any of the Urban Councils in pursuance of any Order of the Local Government Board under Section 33 of the Act of 1894 shall by virtue of this Order vest in and attach to the Corporation in respect of the Townships of Allerton Childwall Little Woolton and Much Woolton in like manner and with the like effect in all respects as if the Corporation had been referred to in the said Orders instead of such Urban Council:
- (3) The powers conferred on the Much Woolton Council in relation to the Much Woolton District by the Order of the Local Government Board dated the fifteenth day of May One thousand eight hundred and ninety-six in respect of a parish council under paragraphs (h) and (i) of subsection (1) of Section 8 of the Act of 1894 shall by virtue of this Order vest in and attach to the Corporation in respect of the City in like manner and with the like effect in all respects as if the Corporation and the City had been referred to in that Order instead of the Much Woolton Council and the Much Woolton District.

Art. XXII.—(1) At the commencement of this Order such members if any of the police force of the County as shall be determined by an agreement to be made as soon as practicable after the date of the Act of Parliament confirming this Order between the Standing Joint Committee of the County and the Watch Committee of the existing City or in default of any such agreement as shall be determined by

County
 police.

[Ch. cxxxviii.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 14) Act, 1913.

A.D. 1913. a Secretary of State shall be transferred to and become part of the
Liverpool police force of the City and any member of the county police force so
Order. transferred shall hold office upon the same tenure and upon the same
terms and conditions as if this Order had not been made and while he
performs the same or similar duties his remuneration emoluments and
allowances and the pension (if any) to which he is entitled shall not be
less than they would have been if this Order had not been made.

53 & 54 Vict. (2) The provisions of Section 15 (2) of the Police Act 1890 as
c. 45. amended by the Police (Superannuation) Act 1906 shall extend and
6 Edw. 7. apply to and in relation to any member of the police force trans-
c. 7. ferred under the powers of this Article as if that member had
removed with the written sanction of the Chief Constable of the
County.

County (3) Any county police station situate in the added areas with the
police residences for constables and cells connected therewith and the fittings
station. and furniture thereof shall by virtue of this Order be transferred to
and vest in the Corporation as from the commencement of this Order
for all the estate and interest therein of the County Council and there
shall be paid by the Corporation to the County Council out of the city
fund or out of moneys borrowed under Article XXVI. of this Order in
consideration of such transfer such sums as shall be agreed upon or
as in default of agreement shall be settled by arbitration in manner
provided by the Act of 1888.

(4) In the event of the amount of the consideration for the
transfer of the property which by virtue of subdivision (3) of this
Article is transferred to and vested in the Corporation not being
ascertained before the commencement of this Order the date of the
final ascertainment of the consideration shall for the purposes of
Section 12 of the Finance Act 1895 be treated as the date of vesting.

Adjustment Art. XXIII.—(1) In any case where the extension of the existing
of financial City by this Order affects the distribution of the proceeds of the local
relations taxation licences or of the estate duty grant or of the Local Taxation
between (Customs and Excise) duties between the County and the City or
County and between the County and the City on the one hand and any other
County County Borough on the other hand or any financial relations or
Boroughs. questions between those areas or any adjustment which has been made
in regard to the said distribution or financial relations or questions
equitable adjustments may be made between the areas interested :

For the purposes of this subdivision or of anything done or to be
done in pursuance of this subdivision any reference in the said sub-
division to the proceeds of licences or duties shall include a reference
to the sums which in pursuance of subsection (4) of Section 17 of the
Finance Act 1907 as amended by Section 6 of the Finance Act 1908

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxviii.]
Provisional Order Confirmation (No. 14) Act, 1913.

and Section 88 of the Finance (1909-1910) Act 1910 and the Revenue Act 1911 or of any subsequent Act have been paid or will be payable in lieu of those proceeds.

A.D. 1913.

*Liverpool
Order.*

(2) Any such adjustment as is authorised by subdivision (1) of this Article may be made by agreement between the Councils of the City the County and the County Boroughs affected and if such adjustment shall not have been made before the Thirtieth day of September One thousand nine hundred and fourteen then on the application of any of the Councils interested the Local Government Board may if they think fit either make the adjustment themselves or appoint an arbitrator to make it.

(3) In any case in which an agreement for equitable adjustment as aforesaid shall not have been made the provisions of the Act of 1888 relating to adjustments between Administrative Counties and County Boroughs shall apply with the necessary modifications and the Local Government Board or an arbitrator appointed by them as the case may be shall be substituted in those provisions for the Commissioners appointed under the Act of 1888 and notwithstanding anything in the provisions of this Order or of the Act of 1888 any such adjustment and the determination of any matter incidental or in relation thereto or consequent thereon shall when made by the Local Government Board be deemed to be made by them otherwise than as arbitrators and any arbitrator appointed by them shall be deemed to be an arbitrator within the meaning of Section 62 of the Act of 1888 and the provisions of the Act of 1888 shall apply accordingly:

Provided—

(a) that in lieu of subsection (6) of Section 61 of the Act of 1888 subsections (1) and (5) of Section 87 of the Act of 1888 shall apply to any inquiries which may be directed by the Local Government Board under this Article and to the costs of those inquiries; and

(b) that subsection (6) of Section 32 of the Act of 1888 shall apply to any agreement or award made under this Article.

(4)—(a) An equitable adjustment shall be made between the County and the City respecting the interest of the added areas in any compensation fund constituted under Section 21 of the Licensing (Consolidation) Act 1910 or under any enactment repealed by that Act: Adjustment
for purposes
of Licensing
(Consolidation) Act
1910.

(b) Such adjustment shall be made by agreement between the Compensation Authority (as defined by the Licensing (Consolidation) Act 1910) for the County and for the City within twelve months from the commencement of this Order or in default of agreement by an arbitrator appointed by the Secretary of State.

[Ch. cxxxviii.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 14) Act, 1913.

A.D. 1913. (c) For the purpose of such adjustment an arbitrator appointed
Liverpool by the Secretary of State shall be deemed to be an arbitrator within
Order. the meaning of Section 62 of the Act of 1888 and the provisions of
that Act shall apply accordingly.

Art. XXIV. For the purposes and subject to the provisions of the
Education Acts 1870 to 1910 and the Education (Administrative Pro-
visions) Act 1911—

Education (1) All contracts (subsisting at the commencement of this Order)
contracts. entered into by the County Council in respect exclusively
of any public elementary school situate in any part of the
added areas or with respect to the officers teachers and
servants of the school shall be deemed to have been made
by and shall be carried into effect by the Corporation as
the local education authority:

Education (2) Any byelaws in force in the existing City immediately before
byelaws. the commencement of this Order shall from and after that
date apply to the City until revoked or altered and from
and after that date any byelaws then in force in any part
of the added areas shall cease to be in force:

Managers. (3) Any managers of public elementary schools in the added areas
who were appointed by the County Council or by any of
the Urban Councils shall vacate office at the commencement
of this Order.

Differential (1) During a period of twenty years from the com-
rating. mencement of this Order the general rate leviable under the Liverpool
Corporation Act 1893 shall not in any one year—

(A) in respect of any hereditament in the Allerton District exceed
two shillings and tenpence in each pound of the rateable
value of the hereditament; and

(B) in respect of any hereditament in the Childwall District exceed
one shilling threepence and three-fifths of a penny in each
pound of the rateable value of the hereditament; and

(c) in respect of any hereditament in the Little Woolton District
exceed three shillings one penny and four-fifths of a penny
in each pound of the rateable value of the hereditament;
and

(D) in respect of any hereditament in the Much Woolton District
exceed three shillings and one-fifth of a penny in each
pound of the rateable value of the hereditament:

Provided that no such rate shall be levied in or upon any part of
the added areas during or in respect of the period between the com-
mencement of this Order and the Thirty-first day of December One
thousand nine hundred and thirteen.

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxviii.]
Provisional Order Confirmation (No. 14) Act, 1913.

(2) During a period of twenty years from the commencement of this Order the total amount in the pound of all rates leviable by or on behalf of the Corporation in any one year (other than the general rate aforesaid and the water rent and water rate leviable under the Liverpool Corporation Waterworks Act 1862) shall not exceed such an amount in the pound as will in respect of an assessment of any hereditament included in those rates make up—

A.D. 1913.

*Liverpool
Order.*

- (A) in the case of the Allerton District a total of one shilling sixpence and one-fourth of a penny; and
- (B) in the case of the Childwall District a total of one shilling eightpence and two-fifths of a penny; and
- (C) in the case of the Little Woolton District a total of two shillings one penny and one-fifth of a penny; and
- (D) in the case of the Much Woolton District a total of two shillings and twopence;

in each pound of the rateable value of the hereditament :

Provided that no such rate shall be levied in or upon any part of the added areas during or in respect of the period between the commencement of this Order and the Thirty-first day of December One thousand nine hundred and thirteen.

(3) The water rent and water rate aforesaid and the water charges in any part of the added areas shall be the same as those charged for the time being in the area of the City as it existed immediately prior to the Ninth day of November One thousand eight hundred and ninety-five.

(4) Except as aforesaid no other rates shall be levied by or on behalf of the Corporation in any part of the added areas during the said period of twenty years.

(5) The charges for electricity in any part of the added areas shall be the same as those charged for the time being in the area of the existing City.

Art. XXVI.—For the purpose of defraying any expenses under this Order which in the opinion of the Local Government Board are properly chargeable to capital and which may include such reasonable costs of the Urban Councils as may be sanctioned by the Local Government Board in respect of this Order and of the inquiry preliminary thereto whether in promoting or opposing this Order the Corporation may borrow according and subject to the provisions and restrictions of the Public Health Act 1875 as if the expenses were incurred for the purposes of that Act and may mortgage the city fund or city rate or the general rate of the City for the purpose of securing the repayment of any moneys so borrowed and the interest thereon Provided that all such moneys shall be repaid within such period not

Borrowing
powers for
purposes of
Order.

[Ch. cxxxviii.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 14) Act, 1913.

A.D. 1913. exceeding thirty years from the date of borrowing the same as the
Liverpool Corporation with the sanction of the Local Government Board may
Order. determine.

Electoral
Divisions
and County
Councillors.

Art. XXVII.—(1) Subject to the provisions of Section 54 of the Act of 1888 the Prescot Electoral Division of the County as diminished by the inclusion of the added areas in the City shall continue to be an Electoral Division of the County and the person who immediately before the commencement of this Order is the County Councillor representing that Electoral Division shall continue to represent that division as if he had been originally elected to represent that division as hereby altered.

(2) No County Alderman or County Councillor in office immediately before the commencement of this Order shall be deemed to lose his qualification by reason of the inclusion of the added areas in the City by this Order.

County rate
basis.

Art. XXVIII.—(1) Subject to any future revision the basis or standard of the county rate for the County shall be altered by the omission therefrom of the amounts appearing in that basis or standard as the total annual value of the property in each of the Townships of Allerton Childwall Little Woolton and Much Woolton.

(2) The Overseers of the Poor of each of the Townships of Allerton Childwall Little Woolton and Much Woolton shall pay to the Corporation all moneys which represent the proceeds of any rate or part of a rate levied by the Overseers in the Township in respect of the year ending the Thirty-first day of March One thousand nine hundred and fourteen for the purposes of county contributions whether in pursuance of an order of the Guardians of the Poor of the Prescot Union or of the West Derby Union as the case may be or of a precept issued by the County Council to the Overseers and which have not at the commencement of this Order been paid to the Guardians of the Poor or the County Council as the case may be.

Audit of
accounts of
Urban
Councils.

Art. XXIX. The accounts of the Urban Councils and of the committees and officers of those Councils shall be made up to the commencement of this Order and shall be audited by the district auditor in like manner and subject to the like incidents and consequences as if this Order had not been made:

Provided that the audit may in each case be held as soon as practicable after that date any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding and that any sum certified by the district auditor to be due from any person shall be paid to the treasurer of the City.

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxviii.]
Provisional Order Confirmation (No. 14) Act, 1913.

Art. XXX. Nothing in this Order shall affect any ecclesiastical parish or district or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment.

A.D. 1913.
*Liverpool
Order.*

Art. XXXI. This Order may be cited as the Liverpool (Extension) Order 1913.

The SCHEDULE above referred to.

PART I.—SANITARY IMPROVEMENT AND GENERAL ACTS.

Session and Chapter.	Title or Short Title.
21 Geo. II. c. xxiv. -	An Act for the building a church in the town of Liverpool in the County Palatine of Lancaster and for enlightening and cleaning the streets of the said town and for keeping and maintaining a nightly watch there.
26 Geo. III. c. xii. -	The Liverpool Improvement and Markets Act 1786.
59 Geo. III. c. ix. -	An Act for the better regulation of Markets and Fairs in Liverpool.
1 Geo. IV. c. xiii. -	The Liverpool Improvement Act 1820.
5 Vict. (Sess. 2) c. xlv. -	The Liverpool Building Act 1842.
5 & 6 Vict. c. cvi. -	The Liverpool Improvement Act 1842.
6 & 7 Vict. c. cix. -	The Liverpool Fire Prevention Act 1843.
7 & 8 Vict. c. li. -	The Liverpool Fire Prevention Act 1844.
9 & 10 Vict. c. cxxvii. -	The Liverpool Sanitary Act 1846.
15 Vict. c. iii. -	The Liverpool Library and Museum Act 1852.
17 Vict. c. xv. -	The Liverpool Sanitary Amendment Act 1854.
18 & 19 Vict. c. clv. -	The Liverpool Improvement Act 1855.
21 & 22 Vict. c. lxxx. -	The Liverpool Improvement Act 1858.
24 Vict. c. xlii. -	The Liverpool Improvement Act 1861.
25 & 26 Vict. c. cxxvi. -	The Liverpool Fire Prevention Acts Amendment Act 1862.
27 & 28 Vict. c. lxxii. -	The Liverpool Improvement Act 1864.
27 & 28 Vict. c. lxxiii. -	The Liverpool Sanitary Amendment Act 1864.
28 Vict. c. xx. -	The Liverpool Improvement Act 1865.
30 & 31 Vict. c. clxviii. -	The Liverpool Improvement Act 1867.
34 & 35 Vict. c. clxxxiv. -	The Liverpool Improvement and Waterworks Act 1871.
41 Vict. c. lxxv. -	The Liverpool Improvement Act 1878.

[Ch. cxxxviii.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 14) Act, 1913.

A.D. 1913.

PART I.—SANITARY IMPROVEMENT AND GENERAL ACTS—*continued.*

*Liverpool
Order.*

Session and Chapter.	Title or Short Title.
43 & 44 Vict. c. xxviii. -	The Liverpool Corporation Act 1880.
43 & 44 Vict. c. ccvii. -	The Liverpool Corporation Loans Act 1880.
45 Vict. c. lv. -	The Liverpool Improvement Act 1882.
46 & 47 Vict. c. lxxii. -	The Liverpool Improvement Act 1883.
48 & 49 Vict. c. xcv. -	The Liverpool Improvement Act 1885.
49 & 50 Vict. c. lxxx. -	The Liverpool Improvement Act 1886.
50 & 51 Vict. c. clxvii. -	The Liverpool Waterworks and Improvement Act 1887.
52 & 53 Vict. c. lxxv. -	The Liverpool Corporation Act 1889.
53 & 54 Vict. c. clxix. -	The Liverpool Corporation Act 1890.
56 & 57 Vict. c. clxxxi. -	The Liverpool Corporation Act 1893.
57 & 58 Vict. c. clx. -	The Liverpool Corporation Loans Act 1894.
60 & 61 Vict. c. cxiii. -	The Liverpool City Churches Act 1897.
60 & 61 Vict. c. lxxxvii. -	The Liverpool Corporation Loans Act 1897.
61 & 62 Vict. c. ccli. -	The Liverpool Corporation Act 1898.
63 & 64 Vict. c. xxxviii. -	The Lancashire Inebriates Acts Board Act 1900.
63 & 64 Vict. c. ccxxxvii. -	The Liverpool Corporation Act 1900.
2 Edw. 7. c. cexl. -	The Liverpool Corporation Act 1902.
4 Edw. 7. c. c. -	The Liverpool and Wigan Churches Act 1904.
5 Edw. 7. c. clxxvii. -	The Liverpool Corporation (General Powers) Act 1905.
8 Edw. 7. c. lxxxiv. -	The Liverpool Corporation (General Powers) Act 1908.
8 Edw. 7. c. clxv. -	The Liverpool Corporation (Streets and Buildings) Act 1908.
9 Edw. 7. c. xxxix. -	The Liverpool Corporation Act 1909.
2 & 3 Geo. 5. c. xiii. -	The Liverpool Corporation Act 1912.

PART II.—WATERWORKS ACTS.

Session and Chapter.	Short Title.
10 & 11 Vict. c. cclxi. -	The Liverpool Corporation Waterworks Act 1847.
13 & 14 Vict. c. lxxx. -	The Liverpool Corporation Waterworks (Amendment) Act 1850.
15 Vict. c. xlviii. -	The Liverpool Corporation Waterworks (Deviations) Act 1852.

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxviii.]
Provisional Order Confirmation (No. 14) Act, 1913.

PART II.—WATERWORKS ACTS—*continued.*

A.D. 1913.

Session and Chapter.	Short Title.	<i>Liverpool Order.</i>
18 Vict. c. lxvi. - -	The Liverpool Corporation Waterworks Act 1855.	
9 & 10 Vict. c. cclxxxvii.	The Chorley Waterworks Act 1846.	
14 & 15 Vict. c. lxxvii. -	The Chorley Waterworks Act 1851.	
19 Vict. c. v. - - -	The Chorley Waterworks Transfer Act 1856.	
23 Vict. c. xii. - - -	The Liverpool Corporation Waterworks Act 1860.	
25 & 26 Vict. c. cvii. -	The Liverpool Corporation Waterworks Act 1862.	
29 & 30 Vict. c. cxxvi. -	The Liverpool Corporation Waterworks Act 1866.	
34 & 35 Vict. c. clxxxiv. -	The Liverpool Improvement and Waterworks Act 1871.	
43 & 44 Vict. c. cxliii. -	The Liverpool Corporation Waterworks Act 1880.	
45 Vict. c. lv. - - -	The Liverpool Improvement Act 1882.	
50 & 51 Vict. c. clxvii. -	The Liverpool Waterworks and Improvement Act 1887.	
52 & 53 Vict. c. lxxv. -	The Liverpool Corporation Act 1889.	
53 & 54 Vict. c. clxix. -	The Liverpool Corporation Act 1890.	
56 & 57 Vict. c. clxxxi. -	The Liverpool Corporation Act 1893.	
2 Edw. 7. c. cexl. - -	The Liverpool Corporation Act 1902.	
8 Edw. 7. c. lxxxiv. -	The Liverpool Corporation (General Powers) Act 1908.	

PART III.—TRAMWAYS ACTS.

Session and Chapter.	Short Title.
31 & 32 Vict. c. clxvii. -	The Liverpool Tramways Act 1868.
33 & 34 Vict. c. clxxvi. -	The Liverpool Tramways Act 1870.
34 & 35 Vict. c. clvii. -	The Liverpool Tramways Act 1871.
35 & 36 Vict. c. cxxii. -	The Liverpool Tramways (Purchase) Act 1872.
38 Vict. c. xlviii. - - -	The Liverpool Tramways Act 1875.
42 & 43 Vict. c. xevi. -	The Liverpool United Tramways and Omnibus Company's Act 1879.
43 & 44 Vict. c. cxxvi. -	The Liverpool Tramways Act 1880.
45 & 46 Vict. c. xcii. -	The Liverpool Tramways Act 1882.
48 & 49 Vict. c. cxlv. -	The Liverpool Tramways Act 1885.
55 & 56 Vict. c. cxxxiv. -	The Liverpool Tramways Act 1892.
60 & 61 Vict. c. civ. -	The Liverpool Corporation Tramways Act 1897.
2 Edw. 7. c. ccxvi. -	The Liverpool Tramways and Electric Supply (Garston Transfer) Act 1902.
9 Edw. 7. c. xxxix. -	The Liverpool Corporation Act 1909.

[Ch. cxxxviii.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 14) Act, 1913.

A.D. 1913.

PART IV.—SANITARY CONFIRMATION ACTS.

<i>Liverpool Order.</i>	Session and Chapter.	Short Title.	Order thereby confirmed.
	39 & 40 Vict. c. cci.	Local Government Board's Provisional Orders Confirmation (Bath &c.) Act 1876.	Order relating to Liverpool dated 19th June 1876.
	39 & 40 Vict. c. ccxxv.	Local Government Board's Provisional Orders Confirmation (Artizans and Labourers Dwellings) Act 1876.	Order relating to Liverpool dated 7th June 1876.
	41 & 42 Vict. c. clxii.	Local Government Board's Provisional Orders Confirmation (Bournemouth &c.) Act 1878.	Order relating to Liverpool dated 7th May 1878.
	42 & 43 Vict. c. civ.	Local Government Board's Provisional Orders Confirmation (Axminster Union &c.) Act 1879.	Order relating to Liverpool dated 2nd May 1879.
	44 & 45 Vict. c. xeviii.	Local Government Board's Provisional Orders Confirmation (Askern &c.) Act 1881.	Order relating to Liverpool dated 5th May 1881.
	47 & 48 Vict. c. ccxiv.	Local Government Board's Provisional Orders Confirmation (No. 7) Act 1884.	Order relating to Liverpool dated 31st May 1884.
	54 & 55 Vict. c. cvii.	Local Government Board's Provisional Orders Confirmation (No. 11) Act 1891.	Order relating to Standish with Langtree dated 12th May 1891.
	56 & 57 Vict. c. cxxxiii.	Local Government Board's Provisional Orders Confirmation (No. 17) Act 1893.	Order relating to Shevington dated 27th May 1893.
	59 & 60 Vict. c. cix.	Local Government Board's Provisional Orders Confirmation (No. 17) Act 1896.	The City of Liverpool Order (No. 1) 1896.
	60 & 61 Vict. c. cxlii.	Local Government Board's Provisional Orders Confirmation (No. 15) Act 1897.	The Liverpool Order (No. 2) 1897.
	1 Edw. 7. c. clii.	Local Government Board's Provisional Orders Confirmation (No. 12) Act 1901.	The Liverpool Order (No. 2) 1901 and the Liverpool Order (No. 3) 1901.
	2 Edw. 7. c. lxxxix.	Local Government Board's Provisional Order Confirmation (Housing of Working Classes) Act 1902.	The Liverpool (Housing of Working Classes) Order 1902.
	4 Edw. 7. c. lxiii.	Local Government Board's Provisional Order Confirmation (No. 2) Act 1904.	The Liverpool Order 1904.
	5 Edw. 7. c. lxxiv.	Local Government Board's Provisional Orders Confirmation (No. 7) Act 1905.	The Liverpool Order 1905.
	7 Edw. 7. c. cliv.	Local Government Board's Provisional Orders Confirmation (No. 4) Act 1907.	The Liverpool Order 1907.
	1 & 2 Geo. 5. c. cxli.	Local Government Board's Provisional Orders Confirmation (No. 2) Act 1911.	The Liverpool Order 1911.
	2 & 3 Geo. 5. c. cxxxv.	Local Government Board's Provisional Orders Confirmation (No. 9) Act 1912.	The Liverpool Order 1912.
	42 & 43 Vict. c. xcxi.	Tramways Orders Confirmation Act 1879.	Liverpool Corporation Tramways Order 1879.
	44 & 45 Vict. c. cv.	Tramways Orders Confirmation (No. 1) Act 1881.	Liverpool Corporation Tramways (Extension) Order 1881.

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxviii.]
Provisional Order Confirmation (No. 14) Act, 1913.

PART V.—TRAMWAYS CONFIRMATION ACTS.

A.D. 1913.

Session and Chapter.	Short Title.	Order thereby confirmed.	<i>Liverpool Order.</i>
45 & 46 Vict. c. cxxxviii.	Tramways Orders Confirmation (No. 1) Act 1882.	—	
46 & 47 Vict. c. cxxxi.	Tramways Orders Confirmation (No. 1) Act 1883.	Liverpool Corporation Tramways (Extensions) Order 1883.	
47 & 48 Vict. c. cxii.	Tramways Orders Confirmation (No. 1) Act 1884.	Liverpool Corporation Tramways (Extensions) Order 1884.	
51 & 52 Vict. c. xc.	Tramways Orders Confirmation (No. 2) Act 1888.	Liverpool Corporation Tramways Order 1888.	
54 & 55 Vict. c. clxii.	Tramways Orders Confirmation (No. 2) Act 1891.	Liverpool Corporation Tramways (Extension) Order 1891.	
57 & 58 Vict. c. exci.	Tramways Orders Confirmation (No. 1) Act 1894.	Liverpool Corporation Tramways (Extensions) Order 1894.	
61 & 62 Vict. c. ccix.	Tramways Orders Confirmation (No. 1) Act 1898.	Liverpool Corporation Tramways (Extensions) Order 1898.	
63 & 64 Vict. c. ccviii.	Tramways Orders Confirmation (No. 5) Act 1900.	Liverpool Corporation Tramways Order 1900.	
1 Edw. 7. c. ccclxxvii.	Tramways Orders Confirmation (No. 1) Act 1901.	Liverpool Corporation Tramways (Extension) Order 1901.	
5 Edw. 7. c. exciii.	Tramways Orders Confirmation (No. 1) Act 1905.	Liverpool Corporation Tramways (Extensions) Order 1905.	
8 Edw. 7. c. cxxxii.	Tramways Orders Confirmation (No. 2) Act 1908.	Liverpool Corporation Tramways Extensions Order 1908.	

PART VI.—ELECTRIC LIGHTING CONFIRMATION ACTS.

Session and Chapter.	Short Title.	Order thereby confirmed.
59 & 60 Vict. c. cxvii.	Electric Lighting Order Confir- mation (No. 3) Act 1896.	Liverpool Electric Lighting Order 1896.
60 & 61 Vict. c. lxi.	Electric Lighting Orders Confir- mation (No. 1) Act 1897.	Garston Electric Lighting Order 1897.

Given under the Seal of Office of the Local Government Board
this Twenty-eighth day of May One thousand nine hundred
and thirteen.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

A.D. 1913.

SECOND SCHEDULE.

PART I.

RULES FOR DETERMINING ADJUSTMENTS OF THE LOCAL TAXATION
LICENCES THE ESTATE DUTY GRANT AND THE RESIDUE
UNDER SECTION 1 OF THE LOCAL TAXATION (CUSTOMS AND
EXCISE) ACT 1890.

1. The portion of the local taxation licences and estate duty grant payable or estimated to be payable in respect of the area of the County as it existed immediately before the Ninth day of November One thousand nine hundred and thirteen shall after the appointed day be divided between the County Council and the Corporation and the amount payable to each shall be apportioned on the following basis:—

(A) There shall be apportioned to the County Council amounts equal to the average annual amounts of the compulsory payments and transfers made by or on behalf of that Council in accordance with section 24 of the Local Government Act 1888 in respect of the five years ending the Thirty-first day of March One thousand nine hundred and fourteen less the portions of such average annual amounts paid and transferred for and in respect of the added area and amounts equal to such last-mentioned portions shall be apportioned to the Corporation:

(B) Out of the balance (if any) of the said portion of the local taxation licences and estate duty grant there shall next be apportioned to the County Council amounts equal to the average annual amounts of the compulsory payments made by or on behalf of that Council in accordance with section 26 of the Local Government Act 1888 in respect of the five years ending the Thirty-first day of March One thousand nine hundred and fourteen less the portions of such annual average amounts paid for and in respect of the added area and amounts equal to such last-mentioned portions shall be apportioned to the Corporation:

(C) Out of the balance (if any) of the said portion of the local taxation licences and estate duty grant there shall next be apportioned to the County Council a sum equal to one-half of the average annual cost during the five years preceding the First day of April One thousand nine hundred and thirteen of the maintenance of main roads within the County as it existed immediately before the

A.D. 1913.

Ninth day of November One thousand nine hundred and thirteen (including any payments made in respect of the interest on or of the repayment of the capital of loans raised on account of such main roads) after deducting the amount of one-half of such cost incurred in respect of the main roads within the added area and such last-mentioned amount shall be apportioned to the Corporation:

Provided that if it appears that the County Council have failed to declare any roads in the County as it existed immediately before the Ninth day of November One thousand nine hundred and thirteen to be main roads which ought to have been so declared or have declared any roads to be main roads which ought not to have been so declared proper adjustments shall be made in the calculation of the cost of maintenance of main roads in the County as it so existed under this rule by the inclusion of the cost of such roads as ought to have been declared to be main roads or the exclusion of the cost of such roads as ought not to have been declared to be main roads as the case may require:

- (D) If any balance of the local taxation licences and estate duty grant remains after apportioning between the County Council and the Corporation the sums ascertained in accordance with the foregoing rules such balance shall be divided between the County Council and the Corporation in proportion to the rateable values on the appointed day of the County and of the added area respectively:
- (E) If any difficulty arises in ascertaining for the purposes of paragraph (A) or paragraph (B) the portion of any item paid or transferred for and in respect of the added area or any part thereof a portion of that item proportionate to the rateable value at the commencement of the financial year in respect of which the payment or transfer was made of that area or part as compared with the rateable value of the whole area for and in respect of which the item was paid or transferred shall be deemed to have been paid or transferred for and in respect of the added area:
- (F) If the amount available for apportionment under any of the preceding paragraphs is insufficient to meet the whole of the amounts apportioned under the paragraph to the County Council and the Corporation those amounts shall be reduced proportionately.

[Ch. cxxxviii.] *Local Government Board's* [3 & 4 GEO. 5.]
Provisional Order Confirmation (No. 14) Act, 1913.

A.D. 1913.

2. The residue under section 1 of the Local Taxation (Customs and Excise) Act 1890 payable or estimated to be payable in respect of the area of the County as it existed immediately before the Ninth day of November One thousand nine hundred and thirteen shall after the appointed day be divided between the County Council and the Corporation in proportion to the rateable values on the appointed day of the County and of the added area respectively.

3. In this Part of this Schedule—

- (1) The expression “the appointed day” means the First day of April One thousand nine hundred and fourteen;
- (2) The expressions “the County” and “the County Council” mean respectively the County Palatine of Lancaster and the County Council of that County;
- (3) The expression “the Corporation” means the Lord Mayor Aldermen and Citizens of the City of Liverpool acting by the Council;
- (4) The expression “the added area” means the area added to the City of Liverpool by the Order relating to Liverpool;
- (5) The expression “rateable value” means (unless the County Council and the Corporation otherwise agree) the rateable value as determined by the last valuation list or if there is no valuation list by the last poor rate.

PART II.

RULES FOR DETERMINING THE SUM TO BE PAID IN RESPECT
OF INCREASE OF BURDEN ON RATEPAYERS.

1. Regard shall be had to—

- (a) The difference between the burden on the ratepayers which will properly be incurred by the Council or other authority affected by the Order in meeting the cost of executing any of their powers and duties and the burden on the ratepayers which would properly have been incurred by that Council or other authority in meeting such cost had no alteration of boundaries or other change taken place;
- (b) The length of time during which the increase of burden may be expected to continue:

Provided that no alteration of income in consequence of an apportionment under Part I. of this Schedule shall be taken into account.

[3 & 4 GEO. 5.] *Local Government Board's* [Ch. cxxxviii.]
Provisional Order Confirmation (No. 14) Act, 1913.

2. The sum payable to any council or other authority affected A.D. 1913.
by the Order in respect of the increase of burden shall not exceed or
if payable by instalments or by way of annuity the capitalised value
of the instalments or annuity shall not exceed the average annual
increase of burden multiplied by fifteen.

3. Any sum payable in respect of the cost of maintenance of
main roads shall be payable by way of annuity.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., FETTER LANE, E.C., and 54, ST. MARY STREET, CARDIFF; or
H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN;
or from the Agencies in the British Colonies and Dependencies,
the United States of America, the Continent of Europe and Abroad of
T. FISHER UNWIN, LONDON, W.C.